

CONTRACTUAL RATES 2018 / 2019

AGREEMENT BETWEEN

Company	365 TRAVEL CO., LTD – VIETNAM
Representative	Mrs Nguyen Thi Thanh Nga – Director
Address	No 707, 7F, 57 Lang Ha st, Ba Dinh, Hanoi
Tel	02438354899
Fax	02437739100
Email	info@365travelvietnam.com

Hereafter called Party A

AND

Company	CÔNG TY TNHH THIÊN MINH HOSPITALITY MANAGEMENT (TMGH)
Representative:	Ms. Pascale Simonot Herry – Executive Director
Address:	Level 10, 157 Pasteur Street, District 3, Ho Chi Minh City
Tel:	(84 28) 6290 9720
Fax:	(84 28) 6290 9710
Email:	reservation@victoriahotels.asia

Hereafter called Party B

All rates are in Vietnamese Dong (VND) and are subject to the Terms & Conditions set in the present Agreement.

The present Agreement is valid for period from 01 October 2018 to 30 September 2019.

Sapa ▪ Hoi An ▪ Phan Thiet ▪ Can Tho ▪ Chau Doc ▪ Nui Sam ▪ Luang Prabang

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Upon request, contract rates for below properties will be issued separately:

Victoria **Cruises** (in the Mekong Delta)

Victoria **Xiengthong** Palace (in Luangprabang, Laos)

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VICTORIA SAPA RESORT & SPA

1. Room Rates: (bed & breakfast basis)

High Season: October 01, 2018 – March 31, 2019	GIT	FIT
Superior	VND 2.784.000	VND 2.900.000
Deluxe	VND 3.016.000	VND 3.132.000
Suite / Family Studio	VND 4.872.000	VND 4.988.000

Low Season: April 01, 2019 – September 30, 2019	GIT	FIT
Superior	VND 1.740.000	VND 1.856.000
Deluxe	VND 1.972.000	VND 2.088.000
Suite / Family Studio	VND 3.828.000	VND 3.944.000

Extra bed supplement:	VND 1.160.000
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2. Peak Season Surcharge: VND 580.000 per room per night for the following periods:

Holiday periods:	From Dec. 26, 2018 to Jan. 01, 2019 (07 nights)
Tet (Lunar New Year) period:	From Feb. 06, 2019 to Feb. 09, 2019 (04 nights)
Victory / Labor holiday:	From Apr. 30, 2019 to May. 01, 2019 (02 nights)
Independence holiday:	From Aug. 31, 2019 to Sep. 01, 2019 (02 nights)

3. Weekend Surcharge (Friday & Saturday): VND 232.000 per room per night in the low Season (April 01– September 30, 2019)

4. Compulsory Meals:

Christmas Eve gala dinner (December 24, 2018):	VND 1.720.000
New Year's Eve gala dinner (December 31, 2018):	VND 1.935.000

5. Meal Rates:

Buffet breakfast:	VND 450.000
Vietnamese or western set menu – 3 courses:	VND 450.000
Vietnamese or western set menu – 4 courses:	VND 500.000
International buffet (40 paying pax and above):	VND 660.000

For any group booking (from 15 pax and above), 01 compulsory lunch or dinner is required at the hotel.

6. Important notes:

- Please refer to the General Terms & Conditions starting on page 16.
- Family Studio has 01 double bed and 02 single beds, with a rate inclusive of breakfasts for a maximum of either 2 adults + 2 children (under 12 years old) or 3 adults. Additional adults will be charged at VND 1.160.000 net per adult per night.

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VICTORIA EXPRESS TRAIN

1. Victoria Express Train schedule:

Hanoi – Lao Cai:	ETD from Hanoi at 22:00
	ETA in Lao Cai: 06:05
Lao Cai – Hanoi:	ETD from Lao Cai at 21:40
	ETA in Hanoi at 05:30

Note: Daily departure, except Saturday.

2. Train ticket prices:

DETAILS		Round-trip	One-way
RATES	Superior	VND 3.110.000	VND 1.867.000
	Deluxe	VND 4.933.000	VND 2.960.000

3. Children policy:

- 25% off on Adult rates for children between 5 years and 12 years old
- Free of charge for children 4 years old & below, using parents' existing berths

4. Conditions:

- Above prices are in VND, per person per berth, inclusive of 10% VAT and 5% service charge subject to changes by the Government without prior notice.
- Above prices are non-commissionable.
- Train departure / arrival times are subject to change without prior notice.
- The Victoria Express Train is available to both resident and non-resident guests of Victoria Sapa Resort & Spa.

5. Important notes:

Terms and Conditions, please refer to page 16 and onwards.

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VICTORIA SAPA HOMESTAY EXPERIENCE

1. Room rates:

Products	Price net/person
Package including Accommodation for one night with 01 Breakfast and 01 Dinner	VND 942.000
Surcharge for 01 return transportation from/ to Victoria Sapa Resort & Spa	VND 470.000

2. Important Notes:

- No extra bed is available at Victoria Sapa Homestay.
- Up to two children under 12 years old per room can share parents' existing double bed.
- Victoria Sapa Homestay can only be booked together with a minimum of one room night at Victoria Sapa Resort & Spa.
- Please refer to the General Terms & Conditions starting on page 16.

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VICTORIA HOI AN BEACH RESORT & SPA

1. Room Rates: (bed & breakfast basis)

High Season: December 23, 2018 – May 01, 2019 and July 01, 2019 – August 21, 2019	GIT	FIT
River View	VND 3.016.000	VND 3.132.000
Garden View	VND 3.480.000	VND 3.596.000
Deluxe	VND 4.060.000	VND 4.176.000
Deluxe Ocean View	VND 5.104.000	VND 5.220.000
Junior Suite	VND 5.568.000	VND 5.684.000
Suite	VND 6.148.000	VND 6.264.000

Low Season: October 01, 2018 – December 22, 2018 and May 02, 2019 – June 30, 2019 and August 22, 2019 – September 30, 2019	GIT	FIT
River View	VND 2.552.000	VND 2.668.000
Garden View	VND 3.016.000	VND 3.132.000
Deluxe	VND 3.596.000	VND 3.712.000
Deluxe Ocean View	VND 4.640.000	VND 4.756.000
Junior Suite	VND 5.104.000	VND 5.220.000
Suite	VND 5.684.000	VND 5.800.000

Extra bed supplement:	VND 1.160.000
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2. Peak Season Surcharge: VND 580.000 per room per night for the following periods:

Festive period: From Dec. 30, 2018 to Jan. 02, 2019 (4 nights)
Easter: From Apr. 19, 2019 to Apr. 23, 2019 (5 nights)

3. Compulsory Meals:

Christmas Eve gala dinner (December 24, 2018):	VND 1.720.000
New Year's Eve gala dinner (December 31, 2018):	VND 1.935.000

4. Meal Rates:

Buffet breakfast:	VND 495.000
Vietnamese or western set menu – 3 courses:	VND 450.000
Vietnamese or western set menu – 4 courses:	VND 500.000
International buffet (40 paying pax and above):	VND 660.000

5. Important note: please refer to the General Terms & Conditions starting on page 16.

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VICTORIA PHAN THIET BEACH RESORT & SPA

1. Room Rates: (bed & breakfast basis)

High Season: November 01, 2018 – March 31, 2019	GIT	FIT
Garden View Bungalow	VND 2.668.000	VND 2.784.000
Beach Front Bungalow	VND 2.900.000	VND 3.016.000
Family Bungalow	VND 3.132.000	VND 3.248.000
Deluxe Sea View Bungalow	VND 3.364.000	VND 3.480.000
Private Pool Villa	N/A	VND 10.208.000
Family Pool Villa	N/A	VND 15.776.000

Low Season: October 01, 2018 – October 31, 2018 and April 01, 2019 – September 30, 2019	GIT	FIT
Garden View Bungalow	VND 1.972.000	VND 2.088.000
Beach Front Bungalow	VND 2.204.000	VND 2.320.000
Family Bungalow	VND 2.436.000	VND 2.552.000
Deluxe Sea View Bungalow	VND 2.668.000	VND 2.784.000
Private Pool Villa	N/A	VND 9.512.000
Family Pool Villa	N/A	VND 15.080.000

Extra bed supplement:	VND 1.160.000
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- 2. Peak Season Surcharge:** VND 580.000 per room per night for the following periods:
 Festive period: From Dec. 27, 2018 to Jan. 03, 2019 (08 nights)
 Tet (Lunar New Year) period: From Feb. 06, 2019 to Feb. 09, 2019 (04 nights)
 Victory / Labor holiday: From Apr. 30, 2019 to May. 01, 2019 (02 nights)
 Independence holiday: From Aug. 31, 2019 to Sep. 01, 2019 (02 nights)
- 3. Weekend Surcharge (Friday & Saturday):** VND 116.000 per room per night in Low Season (Oct 01 – 31, 2018 and Apr 01 - Sep 30, 2019)
- 4. Compulsory Meals:**

Christmas Eve gala dinner (December 24, 2018):	VND 1.720.000
New Year's Eve gala dinner (December 31, 2018):	VND 1.935.000

5. Meal Rates:

Buffet breakfast:	VND 450.000
Vietnamese or western set menu – 3 courses:	VND 450.000
Vietnamese or western set menu – 4 courses:	VND 500.000
International buffet (40 paying pax and above):	VND 660.000

For any group booking (from 15 pax and above), 01 compulsory lunch or dinner is required at the hotel.

- 6. Important note:** Please refer to the General Terms & Conditions starting on page 16.

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VICTORIA CAN THO RESORT

1. Room Rates: (bed & breakfast basis)

High Season: October 1, 2018 – March 31, 2019	GIT	FIT
Superior	VND 3.132.000	VND 3.248.000
Deluxe	VND 3.364.000	VND 3.480.000
Suite	VND 4.756.000	VND 4.872.000

Low Season: April 1, 2019 – September 30, 2019	GIT	FIT
Superior	VND 2.204.000	VND 2.320.000
Deluxe	VND 2.436.000	VND 2.552.000
Suite	VND 3.828.000	VND 3.944.000

Extra bed supplement:	VND 1.160.000
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2. Compulsory Meals:

Christmas Eve gala dinner (December 24, 2018):	VND 1.720.000
New Year's Eve gala dinner (December 31, 2018):	VND 1.935.000

3. Meal Rates:

Buffet breakfast:	VND 380.000
Vietnamese or western set menu – 3 courses:	VND 450.000
Vietnamese or western set menu – 4 courses:	VND 500.000
International buffet (40 paying pax and above):	VND 660.000

For any group booking (from 15 pax and above) 01 compulsory lunch or dinner is required at the hotel.

4. Important note: Please refer to the General Terms & Conditions starting on page 16.

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VICTORIA CAN THO CRUISES

DETAILS	MEKONG PRINCESS 01 Oct 2018 - 30 Sep 2019	LADY HAU 01 Oct 2018 - 30 Sep 2019
BREAKFAST CRUISE		
<u>Inclusions:</u> breakfast on board, visiting Cai Rang Floating Market, a noodle factory and an orchard. <u>Cruising duration:</u> 7:00-10:30	From 2 to 4 persons	Minimum 20 guests
	VND 830,000/person	VND 750.000/person
	From 5 persons & above	
	VND 730,000/person	
Capacity	Maximum 20 guests	Maximum 40 guests
Reservations:	Latest 7 pm of previous day	72 hours in advance
DINNER CRUISE		
Vietnamese set menu Duration: 2 hours (19:00–21:00)	From 2 to 4 persons	VND 515.000/person + charter fee (*) - minimum 2 guests - maximum 20 guests
	VND 830.000/person	
	From 5 persons & above	
	VND 730.000/person	
Buffet Duration: 2 hours (19:00–21:00)	Not available	VND 730.000/person + charter fee (*) - minimum 20 guests - maximum 25 guests
Charter Fee Supplement	VND 4.200.000 / 2 hours - UPON REQUEST	(*) VND 5.500.000/trip COMPULSORY
Capacity	maximum 15 guests	See above
Reservations:	24 hours in advance	72 hours in advance

Remarks:

- Cruises operation is dependent on the river tides.
- Charter fee supplement is not inclusive of food & beverage and extension tour rates.
- Depending on fuel costs, rates are subject to change with our notice in return confirmation.

Children policies:

- FOC for children under 6 years old.
- 50% discount for children from 6 to 11 years old

Cancellation policy:

Any cancellation less than 48 hours prior to the departure time will incur full charge.

Please refer to the General Terms & Conditions starting on page 16.

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VICTORIA NUI SAM LODGE

1. Room Rates: (bed & breakfast basis)

Room types	GIT & FIT
Superior	VND 1.346.000
Deluxe	VND 1.578.000
Family	VND 2.506.000

Extra bed supplement: (Extra bed is not available in Superior Room)	VND 581.000
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2. Room Surcharge:

VND 232.000 net per room per night every Friday and Saturday

3. Compulsory Meals:

Christmas Eve gala dinner (December 24, 2018)	VND 827.000
New Year's Eve gala dinner (December 31, 2018)	VND 1.064.000

4. Meal Rates:

Buffet breakfast	VND 284.000
Vietnamese set menu	VND 378.000
Western set menu	VND 498.000
Vietnamese buffet (30 paying pax and above)	VND 592.000
Western buffet (30 paying pax and above)	VND 710.000

For any group booking (from 15 pax and above), 01 compulsory lunch or dinner is required at the hotel.

5. Important notes:

- Please refer to the General Terms & Conditions starting on page 16.
- Accommodation:
- Up to two children under 12 years old per room can share parents' existing bedding for free; buffet breakfast is charged at 50% of adult rate per child. **Extra bed, inclusive of breakfast**, is charged **VND 348,000 net / child**, for children between 5 years and 12 years old with maximum 1 extra bed / room.
- Family Room has 01 double bed and 01 single bed. The rate is inclusive of breakfast for maximum of either: 2 adults + 2 children (under 12 years old) or 3 adults.

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VICTORIA CHAU DOC HOTEL

1. Room Rates: (bed & breakfast basis)

High Season: October 1, 2018 – March 31, 2019	GIT	FIT
Superior	VND 2.784.000	VND 2.900.000
Deluxe	VND 3.132.000	VND 3.248.000
Suite	VND 4.060.000	VND 4.176.000

Low Season: April 1, 2019 – September 30, 2019	GIT	FIT
Superior	VND 1.856.000	VND 1.972.000
Deluxe	VND 2.204.000	VND 2.320.000
Suite	VND 3.132.000	VND 3.248.000

Extra bed supplement:	VND 1.160.000
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2. Compulsory Meals:

Christmas Eve gala dinner (December 24, 2018)	VND 1.720.000
New Year's Eve gala dinner (December 31, 2018)	VND 1.935.000

3. Meal Rates:

Buffet breakfast	VND 380.000
Vietnamese or western set menu – 3 courses:	VND 450.000
Vietnamese or western set menu – 4 courses:	VND 500.000
International buffet (40 paying pax and above)	VND 660.000

For any group booking (from 15 pax and above), 01 compulsory lunch or dinner is required at the hotel

4. Important note: please refer to the General Terms & Conditions starting on page 15.

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VICTORIA SPEEDBOATS

Victoria Speedboats depart daily according to the following schedule:

Chau Doc – Phnom Penh:	Estimated departure at 07:00
Phnom Penh – Chau Doc:	Estimated departure at 13:30

Rates:

Trip	GIT (8 pax min)	FIT
Chau Doc – Phnom Penh	VND 990.000	VND 1.210.000
Phnom Penh – Chau Doc	VND 858.000	VND 1.210.000

Conditions:

- GIT and FIT rates are per person, including Wi-Fi, morning tea & coffee, morning bites & fruits, 1 soft drink or beer per person, 1 bottle of water per person
- Departure times are subject to change without prior notice.
- Please refer to the General Terms & Conditions starting on page 16

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PROMOTIONS

A. Victoria Mekong Hot Deal

Code: **MK HOT DEAL**

Enjoy a special discount rate of 10% when booking a combination stay in at least 2 of our following properties in the Mekong Delta and Laos:

- Victoria Can Tho Resort & Spa
- Victoria Chau Doc Hotel
- Victoria Nui Sam Lodge
- Victoria Xiangthong Palace

B. Victoria Hotel Combination Offer

Code: **COMBI OFFER**

Book at least 2 hotels of Victoria Hotels & Resorts and enjoy our special discount:

- Book 2 hotels, get 5% OFF
- Book 3 hotels, get 10% OFF
- Book 4 hotels, get 15% OFF
- Book 5 hotels, get 20% OFF

C. Specific Terms & Conditions of Mekong Hot Deal and Combination Offer

- Promotional rate is:
 - Discounted from contractual room rates only of each hotel.
 - Subject to availability and not applicable during each hotel's peak season as per contract.
 - Not to be used in conjunction with any other promotions or special offers.
 - Applicable for new FIT & GIT bookings only.
- Extra bed charge applies as per contract rates.
- To benefit from this promotion, all hotels must be bundled by the Travel Agent with other services, as part of a package.
- Bookings must be clearly marked with booking code to qualify for special rates and sent via email to: reservation@victoriahotels.asia, otherwise, contract rates will apply.
- Payment to be made directly to each hotel.

D. Victoria Product Bundle Offer

- Code: **BUNDLE**
- Book any Victoria property and enjoy discounted prices on our below chart of qualified services of Journeys of Distinction.
- The bundle discounts are applicable on these services of Journeys of Distinction only, year around and on contractual or public rates.

Related properties	The discount is applied on below services only	Ratio Discounted
Victoria Sapa	• Victoria Express Train – round trip • Victoria Homestay	10% on Contract
Victoria Can Tho Victoria Chau Doc Victoria Nui Sam Lodge	• Breakfast and dinner cruises on Mekong Princess • Cai Be Princess day cruises • Le Longanier Restaurant	
Victoria Phan Thiet	• Picnic in Ke Ga excursion	
Victoria Hoi An	• Side car tours	20% on Price list
Victoria Xiangthong Palace	• Bamboo bicycles • Airport transfers	

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TERMS AND CONDITIONS 2018/2019

I. PARTIES

This contract is entered into on the day and year first above written by and between you and TMGH, a 100% Vietnamese-owned company, organized under the Law on Foreign Investment in Vietnam, under Investment License N° 011022000134 on June 22, 2011, as further amended, issued by the Department of Planning and Investment of the People's Committee of Hanoi, with its principal place of business located at Level 10, 157 Pasteur Street, District 3, Ho Chi Minh City, Vietnam. TMGH is the official management company of Victoria Hotels & Resorts.

II. RATE RESTRICTIONS:

Room rates are applicable on your company's account as per the officially authorized travel agent voucher. Should the guest pay by personal account, or extend their stay, regular published rates will be applied to protect the confidentiality of our agreement. All rates given are at the discretion of the hotel and may be revised at the hotel's decision (with a 30-day notice).

The above-mentioned rates cannot be posted on the Internet or to any website without prior written approval from TMGH.

TMGH reserves the right to apply corporate tariffs upon any reservation whose guest's name or company's name are Corporate-listed or Hotel's Corporate Customers-listed.

III. RESERVATIONS

Your travel agency shall direct all reservations to the reservation department of the hotel concerned by fax or e-mail with authorized signature (reservations made by telephone will not be considered).

IV. TAX AND SERVICE CHARGE

The hotels reserve the right to adjust the tax and service charge without prior notice in the event of alterations by the government. All confidential rates are inclusive of tax and service charge.

V. RATES BASIS

- Above mentioned rates are quoted in Vietnam Dong (VND), and are non-commissionable.
- Except from Victoria Sapa Homestay, room rates are quoted per room per night (single or double occupancy), including buffet breakfast for 01 or 02 persons.
- Meal rates are quoted per person per meal.

Children's Policy:

- Accommodation: Up to two children under 12 years old per room can share parents' existing bedding for free; buffet breakfast is charged at 50% off per child. **Extra bed** is charged at **VND 464.000** net / child including breakfast, for children between 5 years and 12 years old with maximum 1 extra bed/ room.
- Meals: 50% off regular adult meal rates for children between 5 years and 12 years old (children's portion meals), full price will be charged if ordering from the regular "Kids' Menu". 20% off gala dinners for children between 5 years and 12 years old. Free of charge for meals for children of 4 years old & below.
- Train & Victoria Speedboat & Victoria Sapa Homestay Experience: 25% discount of adult rates for children between 5 years and 12 years old. Free of charge for children of 4 years old & below, using parents' existing berths/seat/bed.
- Mekong Princess: Free of charge for children 4 years old & below. 50% discount for children between 5 years and 12 years old.

VI. GROUP DOWN PAYMENT

Down payment is mandatory for all ad hoc groups requesting **more than 8 rooms** (or 15 persons reserving above mentioned products & services) as per the following schedule:

Group down payment is compulsory:

- 50% down payment on rooms 60 days prior to arrival.
- Balance to be settled 30 days prior to arrival.

In order to guarantee your room bookings during high occupancy periods at the relevant hotels, a 50% non-refundable deposit will be requested. Victoria Hotels & Resorts will confirm the booking once it receives your deposit as guarantee.

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VII. PAYMENT

If you do not have existing credit facilities with the hotel: Full pre-payment for FIT booking made before the date of free cancellation, stated in the below article VIII; And for groups as per Group Down Payment procedures. Payment for any and all charges must be settled before guest check-in by cash, credit card or bank transfer, unless both parties have a prior agreement for alternative arrangements.

- Should a credit application be completed and accepted, payment must be settled in full, within 30 days upon date of invoice. For payment exceeding 30 days, the hotel reserves the right to add a penalty fee of 5% of the invoiced amount for each 30 days of late payment.
- All payments must be settled in VND by a bank transfer to the bank references stipulated on the invoice, not inclusive of any bank charges.

VIII. CANCELLATION AND NO-SHOW POLICY FOR INDIVIDUALS AND GROUPS

1/ Individuals:

1.1 Accommodation:

1.1.1 Low Season:

For cancellations less than 07 days prior to the arrival date, Victoria Hotels & Resorts reserves the right to impose a one-night room charge for each room reserved. Cancellations made less than 3 days prior to the arrival date or no show will incur full charge for all rooms reserved.

1.1.2 High Season:

For cancellations less than 14 days prior to the arrival date, Victoria Hotels & Resorts reserves the right to impose a one-night room charge for each room reserved. Cancellations made less than 7 days prior to the arrival date or no show will incur full charge for all rooms reserved.

1.1.3 Peak Season (holidays, Tet period):

For cancellations less than 30 days prior to the arrival date, Victoria Hotels & Resorts reserves the right to impose a one-night room charge for each room reserved. Cancellation made less than 14 days prior to the arrival date or no show will incur full charge for all rooms reserved.

1.2 For the **Victoria Express Train and Victoria Speedboat** cancellation must be made at least **14** days prior to departure date for individuals. In the event of cancellation less than 14 days prior to the departure date, Party B reserves the right to impose a 50% charge for each berth/seat reserved. Cancellation less than 3 days prior to departure date or no show will incur full charge for all berths/seats reserved.

1.3 For the **Victoria Homestay Experience**, for cancellations less than 07 days prior to the arrival date, Victoria Hotels & Resorts reserves the right to impose a one-night occupancy charge for each booking. Cancellations made less than 3 days prior to the arrival date or no show will incur full charge for all occupancies reserved.

1.4 For **meals**, cancellation must be made **48 hours** prior to service commencement for individuals. In the event of cancellation less than 48 hours prior to commencing date, Party B reserves the right to impose a 50% charge for all meals reserved. Cancellation on service commencing date or no show will incur full charge for all meals reserved.

1.5 For the **Mekong Princess**, FIT bookings (2 to 10 passengers): Any cancellation less than 48 hours prior to the departure time will incur full charge. GIT bookings (11 passengers up): Any cancellation less than 72 hours prior to the departure time will incur full charge.

2/ Ad hoc groups and group series:

2.1 For groups, if cancellation is made less than **45** days prior to the arrival date at the hotel, Victoria Hotels & Resorts reserves the right to impose a 50% room charge for each room reserved. Cancellation less than 14 days prior to the arrival date or no show will incur full charge for all rooms reserved.

2.2 For **Victoria Express Train and Victoria Speedboat** cancellation must be made **30** days prior to the departure date of the group. In the event of cancellation less than **30** days prior to departure, Party B reserves the right to impose a 50% charge for each berth reserved. Cancellation less than 14 days prior to departure date or no show will incur full charge for all berths reserved.

2.3 For **meals**, if cancellation is not specified in the proposal or quotation, any cancellation must be made **7 days** prior to service commencement for groups. In the event of cancellation less than 7 days prior to commencing date, Party B reserves the right to impose a 50% charge for all meals reserved. Cancellation within 48 hours prior to the service commencing date or no show will incur full charge for all meals reserved.

2.4 Group series:

- A rooming list must be submitted to each hotel prior to cut-off period as stipulated during reservation confirmation. Victoria Hotels & Resorts reserves the right to release all unused series allotments after the cut-off period.

- For all group series, in case of low group materialization after 3 months of the series, Victoria Hotels & Resorts reserves the right to increase the cut-off period to 60 days or reduce the room allotments.

- At least 14 days prior to arrival date, the hotel must receive the final group arrangements including daily meal

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requirements, and details of arrival and departure times.

IX. GROUP SIZE AND GROUP CONCESSION POLICY (Accommodation & Meals)

- The hotel defines a "group" as a minimum of 15 paying persons traveling together, for example: 07 paying double rooms plus 01 paying single room.
- A half twin complimentary room is offered per stay for the tour leader's use only for every 15 full paying pax staying in a minimum of 8 rooms at contract rate, otherwise specified. Maximum of 2 complimentary rooms.
- 1 complimentary meal is offered for the tour leader's use only for every 15 full paying guests at contract rate, otherwise specified. Maximum of 2 meals per stay, beverages not included.

X. VICTORIA SPEEDBOATS – GENERAL TERMS & CONDITIONS

EXCLUSIVITY: Unless otherwise specified in writing, a booking confirmation does not include exclusive rights for the customers on using the boat; other passengers may come along sharing the same boat.

DAMAGES:

- The Victoria Chau Doc Hotel cannot be held responsible for the damages suffered by passengers arising from Victoria Hotels & Resorts' boating accidents.
- For other damages due to the Victoria Hotels & Resorts boats for which the Victoria Chau Doc Hotel may be held responsible, passengers are hereby informed that the hotels cannot be held responsible for claims beyond 10 billion VND in aggregate per year.

VIETNAM-CAMBODIA ENTRY/EXIT:

The Entry/Exit gates will be at the KA AM SAMNOR checkpoint on the Cambodian side and VINH XUONG on the Vietnamese side.

- Valid visas are required for entry to Vietnam.
- Spot granting of visas upon arrival at the KA AM SAMNOR checkpoints in Cambodia is available from Aug 01, 2002.

METHOD OF TRANSPORTATION:

- With written notice via fax or e-mail to the bookers, the hotel may dispatch boats of similar performance to replace originally designated boats.
- In case of force majeure where the Victoria Hotels & Resorts boats may not be available, Victoria Hotels & Resorts reserves the right to cancel or modify the booking while suggesting an alternate means of transportation with rational revision of the prices to the best interest of the bookers and the hotel.

EMBARKATION AND DISEMBARKATION SITE IN PHNOM PENH:

Phnom Penh Floating Port, Sisowath Quay, Phnom Penh, Cambodia

XI. CHECK-IN AND CHECK-OUT PROCEDURES

Check-in time is from 14:00, and check out time is at or before 12:00 (noon).

Extension of check-out time is subject to availability and will be charged as follows:

- Check out until 18:00: 50% of contract rates
- Check out after 18:00: 100% of contract rates

XII. INSURANCE COVERAGE:

Victoria Hotels & Resorts has arranged for and put in force a Public and Products Liability Insurance through renowned insurers that cover all hotel related activities following international standards of quality in terms of scope of cover and limit of indemnity. A summary of insurance cover in place is available upon request.

XIII. RESPONSIBILITIES:

Cancellation by Us

Victoria Hotels & Resorts may be obliged to cancel travel arrangements due to circumstances beyond our control. These may be for reasons of force majeure (cancellation / alteration of domestic scheduled services, technical problems with transportation, contamination, closure of airport or train stations, war [whether declared or not], threat of war, riots, civil disturbances, strikes, disasters, terrorist activities or threat of such, etc.). In such cases, Victoria Hotels & Resorts shall inform direct clients without delay and shall offer clients the choice of alternative dates or a full refund of all monies paid.

Our Responsibilities

Apart from the accommodation and services directly operated by Victoria Hotels & Resorts, Victoria Hotels & Resorts does not own or operate all of the accommodation, transport or other facilities used in connection with its packages. Victoria Hotels & Resorts therefore cannot accept liability for negligence of the staff of these organizations. Victoria Hotels & Resorts makes arrangements with hotel partners, transportation companies, local boats, and other independent parties to provide you with the travel arrangements you purchase. These parties are independent suppliers over whom Victoria

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JOURNEYS OF DISTINCTION

Victoria Hotels & Resorts is not liable in the event of any failure by any person or company to render any transportation, accommodation or other travel service to be provided on the journey, or for expenses incurred due to delays caused by the weather, strikes, war, civil disturbances, natural disasters, flight delays, government actions, mechanical failures or any act of God.

The participant waives any claim against Victoria Hotels & Resorts for any damage to, or loss of, property, or injury or death, due to any act, or negligence of any airlines, surface transportation companies, hotel partners or any person rendering any of the services or accommodation included. In case of death or injury, loss or damage to property on board a means of transportation not owned and managed by Victoria Hotels & Resorts, the passenger agrees to waive any right of action against Victoria Hotels & Resorts since any claim shall be solely pursued against the owner of the vehicle, according to the law of the country in which these services are rendered.

In the event of a service being withdrawn by any of its suppliers, Victoria Hotels & Resorts shall have no responsibility beyond refunding all monies paid by the participant. Payment for reservations of any Victoria Hotels & Resorts' accommodation or packages shall constitute consent to all the provisions in the Terms and Conditions published herein.

The contract shall be effective at the execution date of the said Terms and Conditions.

The law governing the contract is the law of Vietnam. Any dispute, controversy or claim relating to the contract shall be resolved by one or more arbitrators appointed in accordance with the Rules of Conciliation and Arbitration of the Vietnam International Arbitration of the Chamber of Commerce. The Arbitration shall take place in Ho Chi Minh City, Vietnam, and shall be held in English.

This contract supersedes any previous contract rates of Victoria Hotels & Resorts and is valid upon acceptance of the above Terms and Conditions. In order for Victoria Hotels & Resorts to include your company in its listing for preferential rates, please notify your acceptance of all Terms and Conditions of this contract by signing the duplicate of it on all pages and by mailing it duly stamped to the hotel. The hotel must receive this contract within 21 days from the date of issue, after which this offer shall be null and void. Regular published rates will be automatically applied to your bookings.

Agreed and accepted by:

Signature for:

Name & Position:

Date:

Agreed and accepted by:

Signature for: **Công ty TNHH Thiên Minh
Hospitality Management (TMGH)**

Name & Position: Ms. Pascale Simonot Herry
Executive Director

Date:

Level 10, 157 Pasteur Street, District 3, Ho Chi Minh City, Vietnam

Email: reservation@victoriahotels.asia Website: www.victoriahotels.asia



CONTACT DETAILS – VICTORIA HOTELS & RESORTS

TMG HOSPITALITY – SALES OFFICE	
HO CHI MINH CITY HEAD OFFICE: Level 10, 157 Pasteur Street, District 3, HCMC, Vietnam Tel: (84-28) 6290 9720 / Fax: (84-28) 6290 9710 Email: sales@victoriahotels.asia Website: www.victoriahotels.asia Deputy Director of Sales: Ms. Aleksandra Nguyen	HANOI SALES OFFICE Level 9, 70-72 Ba Trieu Street, Hoan Kiem, Hanoi, Vietnam Tel: (84-24) 3 933 0318 Fax: (84-24) 3 933 0319 Email: sales@victoriahotels.asia

THE HOTELS	
VICTORIA SAPA RESORT Sapa District, Lao Cai Province, Vietnam Tel: (84-214) 3 871 522 Fax: (84-214) 3 871 539 Email: resa.sapa@victoriahotels.asia General Manager: Mr. Nguyen Van Tri Reservation Manager: Mr. Nguyen Duc Thinh	VICTORIA CAN THO RESORT Cai Khe Ward, Can Tho City, Vietnam Tel: (84-292) 3 810 111 Fax: (84-292) 3 829 259 Email: resa.cantho@victoriahotels.asia Hotel Manager: Ms. Chau Thi Y Khoa Reservation Manager: Ms. Nguyen Thuy Hang
VICTORIA HOI AN BEACH RESORT & SPA Cua Dai Beach, Hoi An Town, Quang Nam Province, Vietnam Tel: (84-235) 3 927 050 Fax: (84-235) 3 927 041 Email: resa.hoian@victoriahotels.asia General Manager: Mr. Claude Balland Reservation Manager: Ms. Huynh Thi Tuyet Anh	VICTORIA CHAU DOC HOTEL 1 Le Loi, Chau Doc Town, An Giang Province, Vietnam Tel: (84-296) 3 865 010 Fax: (84-296) 3 865 020 Email: resa.chaudoc@victoriahotels.asia General Manager: Mr. Nicolas Corino Reservation Manager: Ms. Truc Ly
VICTORIA PHAN THIET BEACH RESORT & SPA Km 9, Phu Hai, Phan Thiet Town, Binh Thuan Province, Vietnam Tel: (84-252) 3 813 000 Fax: (84-252) 3 813 007 Email: resa.phanthiet@victoriahotels.asia General Manager: Mr. Sebastien Rodriguez Reservation Manager: Mrs. Nguyen Thi Kim Loan	VICTORIA NUI SAM LODGE Vinh Dong 1, Nui Sam Ward, Chau Doc Town, An Giang Vietnam Tel: (84-296) 3 575 888 Fax: (84-296) 3 575 887 Email: resa.nuisam@victoriahotels.asia Hotel Manager: Mr. Pham Minh Tuan Reservation Manager: Ms. Duong Xuan Uyen

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